

The Settlement Agreement includes a provision that it is enforceable pursuant to Code of Civil Procedure section 664.6 and jurisdiction is reserved to the Court for that purpose. Settlement Agreement, ¶13.3, Supporting Declaration, **Exhibit A**.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶¶4-6.

The Settlement Agreement requires notice and an opportunity to cure. See Settlement Agreement, ¶1, Supporting Declaration, **Exhibit A** (Judgment after default may only be entered “after the defaulting Defendant is sent a TEN (10) DAYS notice of default”).

The Supporting Declaration fails to indicate service of a ten-day notice of default, as required. See Supporting Declaration, ¶¶1-6. Nothing in the Settlement Agreement indicates that service of the motion is tantamount to the giving of such notice. For this reason alone, the Court denies the motion.

However, even if a ten-day notice of default were not required, the Court further observes that it does not appear that the motion papers, as served, had the hearing information specified on the caption at the time of service. See Proof of Service dated January 6, 2026. Though the papers were served January 6, 2026, it appears that was before the clerk added the hearing information to the caption of the papers when the motion was filed on January 7, 2026.

Typically, a moving party files an amended notice of motion reflecting the assigned hearing date in those circumstances where the clerk processes the motion papers for filing and adds the hearing information after the initial papers were served, including the notice of motion (often containing a blank space for hearing date and location information to be added, as it appears was the case here).

Disposition

The Court finds and orders as follows:

1. The Motion to Enforce Settlement is **DENIED**, without prejudice.
2. The Court shall issue the order after hearing.

18. 9:00 AM CASE NUMBER: N25-1244
CASE NAME: MALINA CURIALE VS. RUBY LIU
HEARING IN RE: MOTION TO SET ASIDE VOID JUDGMENT
FILED BY:

TENTATIVE RULING:

The Motion to Set Aside Void Judgment is **CONTINUED** by the Court to June 22, 2026 at 9:00 a.m.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C22-00879
CASE NAME: NANCY STIPANICH VS. KIM FALAHATI
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES**
FILED BY: STIPANICH, NANCY
TENTATIVE RULING:

Matter **WITHDRAWN** by moving party's Notice of Withdrawal of Motion to Compel. The hearing is **VACATED**.

20. 9:01 AM CASE NUMBER: C24-01374
CASE NAME: ALI ERAMI VS. INGE PRASETIJO
***HEARING ON MOTION FOR DISCOVERY COMPEL JIN KIM, M.D.'S COMPLIANCE WITH DEPOSITION**
SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS
FILED BY: PRASETIJO, INGE CHRISTINE
TENTATIVE RULING:

Defendant Inge Christine Prasetijo ("Defendant") filed a Motion to Compel Jin Kim, M.D.'s Compliance with Deposition Subpoena for Production of Business Records on November 25, 2025 (the "Motion to Compel"). By the Motion to Compel, Defendant seeks production of medical records relating to treatment records of plaintiff Ali Erami ("Plaintiff") pursuant to subpoena. The Motion to Compel was set for hearing on May 18, 2026.

Background

Defendant issued a third party records subpoena (the "Subpoena") to third party Jin Kim, M.D. ("Dr. Kim") seeking Plaintiff's medical records. See Declaration of Jennifer Sommer filed November 25, 2025 ("Supporting Declaration"), ¶4 and **Exhibit C** thereto. Specifically, Defendant sought the following records:

Scope of records limited to: 01/01/2016 to present only

Please obtain films/imaging in DICOM format.

All documents and records stored in any format or method including, but not limited to, all medical records, intake forms, patient completed forms and/or documents, correspondence, all office records, emergency room records or reports, inpatient and outpatient charts and records, lien files, SOAP notes, pathology records and reports, lab reports, pharmacy and prescription records, physical therapy records, sign-in sheets, all descriptions of exercises prescribed, documentation which indicate date and time of patient's appointments, insurance documents, all radiology reports and readings, and any other documents maintained pertaining to the care, treatment and examination of the patient; and

COPIES of all original x-rays films, CT scans, MRIs and any other scans or images taken and/or maintained, including a comprehensive list of all dates and body parts of all films, CT scans, MRIs and all other images or scans provided. All images and films must be provided on CD if available.